

CASE SUMMARY v.7: CONFIDENTIAL ATTORNEY WORK PRODUCT DATE:

May 16, 2026 **RE:** Estate of Leonardo Eslinger, et al. v. Jillian N. Kratochvil, et al.

PURPOSE: To provide a comprehensive overview of the facts, legal authority, and strategic recommendations for litigation against Guardian ad Litem (GAL) Jillian N. Kratochvil and her employer, Stoll, Keenon, Ogden, PLLC (SKO), for gross malpractice, fraud, and civil rights violations resulting in the wrongful death of Leonardo Eslinger and trauma to his surviving siblings.

I. PLAINTIFF STRUCTURE - ESTATE OF LEONARDO ESLINGER

The recommended plaintiff structure is critical to surviving a motion to dismiss. The sole proper plaintiff for the wrongful death action is the **Estate of Leonardo Eslinger, with Kristi Held acting as the court-appointed Personal Representative.**

- **Kristi Held as Personal Representative:** Appointed October 3, 2025, Kristi Held is the only party with the legal authority to bring this action on behalf of the Estate.
- **Mother (Sara Eslinger) is NOT a Co-Plaintiff:** The mother's significant criminal history and effective abandonment of the children make her cooperation a direct threat to the case's integrity. Her inclusion would be detrimental and is legally unnecessary.
- **Parents Excluded Under Indiana Wrongful Death Act (WDCA):** Both biological parents are legally precluded from being statutory beneficiaries. At the time of Leonardo's death, both were incarcerated, Sara's parenting time had been formally suspended by court order, Joseph was being held on cruelty to a minor in Louisiana for the abuse inflicted upon Leonardo, at that time the arrest was based upon his knowledge that Diana was abusing and he did not protect the child by stopping it. (refer to Louisiana Laws in the matter) Their own wrongful acts and omissions

directly contributed to the circumstances that led to Leonardo’s death, disqualifying them from any recovery.

Party	Status at Time of Death	Culpability	Standing
Joseph Eslinger (Father)	Incarcerated; Parenting Negligence; Failure to Time Suspended	Protect	None
Sara Eslinger (Mother)	Incarcerated; Parenting Negligence; Time Suspended	Abandonment	None

This structure is supported by Indiana case law, which establishes that **“the only proper plaintiff in a wrongful-death action is the personal representative of the decedent’s estate.”** *Latoya Alexander v. Alexandria P Frakine*, No. 24A-CT-132 (Ind. Ct. App. Feb. 20, 2025).

II. COMPREHENSIVE TIMELINE

Date	Event	Significance
Mar 10, 2023	Mother’s parenting time SUSPENDED by court order.	Establishes legal basis for precluding mother from recovery.
Mar 17, 2023	Father granted sole legal and physical custody of Jonah.	Places children in the care of the father, setting the stage for the guardianship case.
May 4, 2023	Guardianship petitions filed. Amy Brandsasse appointed GAL.	Initial proceedings begin.

Date	Event	Significance
June 6, 2023	Special Judge Vowels orders parties to agree on a new GAL.	
June 9 - July 25, 2023	CRITICAL 47-DAY DELAY: Court takes no action.	DUE PROCESS VIOLATION. Children remain with father while the court fails to act on the critical GAL appointment.
Aug 1, 2023	[NON-COURT EVENT] Jillian Kratochvil is one of seven candidates seeking judicial appointment from the Governor.	CONFLICT OF INTEREST. Kratochvil is actively pursuing a judgeship in the same court system where she is about to be appointed GAL.
Aug 2, 2023	Jillian Kratochvil appointed GAL.	
Sep 28, 2023	Governor Holcomb announces Kratochvil's appointment to the Vanderburgh Superior Court.	Kratochvil is now a judge-in-waiting, creating an immediate and undeniable conflict of interest under Judicial Conduct Rule 1.7.
Oct 3, 2023	Kratochvil files biased and factually inaccurate GAL report, recommending	BREACH OF DUTY. The report disregards evidence, contains false narratives, and

Date	Event	Significance
	children remain with the father.	directly leads to Leonardo's death.
Oct 4, 2023	[NON-COURT EVENT] Petitioners meet with attorney Julie Fox to review the report.	
Oct 4-8, 2023	4-DAY GAP ANALYSIS: Kratochvil waits only four days after filing her career-advancing (but deadly) report to withdraw.	This short timeframe demonstrates her priority was securing her judicial position, not the welfare of the children. Her job was not "complete."
Oct 9, 2023	Kratochvil makes an oral motion to WITHDRAW (not recuse), claiming her job is "complete." Judge Vowels, now overseen by Kratochvil, declares her report will "stand as primary" and cannot be challenged, shifting the financial burden for a "supplemental" GAL to the petitioners.	ABUSE OF POWER & DUE PROCESS VIOLATION. Kratochvil uses her new authority to shield her fraudulent report from scrutiny and escape cross-examination.
Nov 9, 2023	Kratochvil is sworn in as a Vanderburgh Superior Court Judge.	

Date	Event	Significance
Dec 28, 2023	Leonardo Eslinger is brutally assaulted while in Diana's care and is airlifted to a children's hospital. Joseph and Diana Arrested Children wards of court. MISSING Dec. 29 mother and petitioners are notified Kristi and Sherri fly to Louisiana. Dec 30 Sherri and Kristi talk with DCS to see about custody of the other two children- told have to go to court first Dec 31 Leo pronounce dead	The direct result of Kratochvil's grossly negligent recommendation.
Jan 19, 2024	Leonardo Eslinger dies from his injuries. Guardianship case is dismissed as moot.	
Jan 4, 2026	[NON-COURT EVENT] Initial meeting with realtor Peter Rudolph (represented by SKO).	
Jan 21, 2026	[NON-COURT EVENT] SKO attorney Andy Nestrick	

Date	Event	Significance
	drafts a predatory “Option to Purchase” term sheet for the Helds.	
Apr 6, 2026	[NON-COURT EVENT] Phone call where Rudolph admits a waiver in the purchase agreement is for his protection, referencing Leo’s death.	EVIDENCE OF CONCEALMENT. Shows knowledge and intent to protect from liability.
Apr 20, 2026	Civil tort lawsuit against Kratochvil/SKO is served.	
Apr 23, 2026	RETALIATION: Rudolph (represented by SKO) sends a demand letter for removal of a storage unit.	Retaliatory action taken just 3 days after SKO was served with the lawsuit.

III. GAL GROSS MALPRACTICE AND MISCONDUCT

Kratochvil’s actions constitute a profound breach of her duties, characterized by a conflict of interest that she actively concealed and leveraged for personal gain at the expense of a child’s life.

A. Duty of Care Violations: A GAL’s primary duty is to investigate facts and advocate for the child’s best interest. Kratochvil failed this duty by: * Ignoring documented evidence of the father’s instability. * Failing to conduct a thorough, impartial investigation. * Substituting her own biased, personal opinions for facts.

B. Specific Misconduct: * Biased & Inaccurate Report: The report filed on October 3, 2023, was a work of fiction designed to quickly close the case, facilitating her transition to the bench. * **False Narrative:** She created a narrative that favored the father, directly contradicting legally filed documents and witness statements. * **Causation:** This fraudulent report was the direct and proximate cause of Leonardo Eslinger remaining in a dangerous environment, which led to his death.

C. Fraudulent Claim of Judicial Immunity: Kratochvil falsely claimed she had judicial immunity due to her recent appointment by the governor. This is a deliberate misrepresentation of the law; GALs are not judges and do not possess judicial immunity, especially for acts of fraud or bad faith. Oral motion to withdraw made 5 days after filing report and in chambers denying plaintiffs due process rights, demonstrating priority to tie up work as attorney to be able to be appointed to bench.

D. Abuse of Power as Chief Judge-Elect: Upon her appointment, Kratochvil became the supervisor of the very judge hearing her case (Special Judge Vowels). She used this newfound power to: * Pressure the court into accepting her flawed report as “primary.” * Prevent the petitioners from challenging, refuting, or cross-examining her on the report’s contents, a clear due process violation.

E. Financial Burden Shifted to Petitioners: The court, under pressure, authorized a new GAL study but limited it to a “supplemental” report, forcing the financially strained petitioners to bear the full cost while being unable to challenge the primary, fraudulent report they had already co-funded.

F. Withdrawal Was NOT a Recusal (Code of Ethics 1.7 Violation): On October 9, 2023, facing an undeniable conflict of interest, Kratochvil should have recused herself. Instead, she moved to “withdraw,” falsely claiming her job was “complete” just four days after filing her report. This was a calculated move to evade testimony, avoid cross-examination, and cement

her flawed report as the final word, clearing her path to the bench. We now understand that Kratochvil sent notices to some of her clients ahead of the appointment indicating potential conflict of interest, but did not disclose to us even when glaring conflicts of interest existed and resulted in denial of due process, promoted interests of Kratochvil and not the children.

IV. STANDING ANALYSIS - DETAILED LEGAL AUTHORITY

Standing is the threshold issue, and our position is legally sound.

- **Primary Standing - The Estate:** The exclusive party with standing to bring the wrongful death claim is the **Estate of Leonardo Eslinger**, acting through its Personal Representative, Kristi Held.
 - **Statute: Indiana Code § 34-23-1-1** (Wrongful Death Act) explicitly grants this right to the personal representative.
 - **Case Law:** *Latoya Alexander v. Alexandria P Frakine*, No. 24A-CT-132 (Ind. Ct. App. Feb. 20, 2025) holds that the “**only proper plaintiff in a wrongful-death action is the personal representative of the decedent’s estate.**”
- **Sherri Eslinger and Kristi Held Lack Individual Standing:**
 - They are not the personal representative and do not qualify as statutory beneficiaries under the WDCA. Indiana law makes a clear distinction between the Adult Wrongful Death Statute (WDS), brought by a personal representative, and the Child Wrongful Death Statute (CWDS), brought by parents. *Estate of Sears Ex Rel. Sears v. Griffin*, 771 N.E.2d 1136 (Ind. 2002).
 - They can act as “next friend” for the surviving minors in this wrongful death action as they are permanent legal guardians of the surviving minor plaintiffs. A guardian must be “**appointed by the court.**” *Lillian Parsley v. MGA*

Family Group, Inc., 103 N.E.3d 651 (Ind. Ct. App. 2018). See also *In re Paternity of S.A.M.*, 85 N.E.3d 879 (Ind. Ct. App. 2017).

- **Parents (Joseph and Sara) are Precluded:** As detailed in Section I, their incarceration, suspended parental rights, and culpability legally bar them from bringing a claim or benefiting from one.

V. DUE PROCESS VIOLATIONS (U.S. Const. Amend. XIV; Ind. Const. Art. 1, § 12)

The petitioners were systematically denied their fundamental right to be heard in a meaningful manner.

1. **47-Day Delay (June-July 2023):** The court's inaction in appointing a GAL left vulnerable children in an unstable environment, violating the right to a timely resolution of custody matters.
2. **Denial of Right to Challenge Evidence:** Judge Vowels' order that Kratochvil's report would "stand as primary" and could not be refuted is a flagrant due process violation. Parties have a constitutional right to confront and challenge evidence used against them.
3. **No Opportunity for Cross-Examination:** Kratochvil's strategic "withdrawal" and the court's complicity denied the petitioners their right to cross-examine her on the report's fraudulent contents.
 - **Case Law:** *Bowman v. Bowman*, 686 N.E.2d 921 (Ind. Ct. App. 1997) affirms the right to cross-examine the preparer of a custody report. Shielding a GAL from cross-examination while accepting their report as evidence is a clear violation of due process. *Morgan v. Getter*, 441 S.W.3d 94 (Ky. 2014).
4. **Denial of Discovery:** Denying petitioners the ability to depose or seek discovery from the GAL regarding the basis of her report constitutes a clear abuse of discretion and

violates due process. *Paternity: Genesis Palma v. Zachary Kent Keown*, No. 23A-JP-2720 (Ind. Ct. App. Aug. 14, 2024).

Question: what is the proper timeline for an emergency petition for guardianship to be heard by the court? Was our case not filed as ER Guardianship? What caused it to change? I still don't know or understand why we had 1 court appearance before the judge and everything else was in chambers. Why were we not able to sit in and have our concerns heard? So many questions and no answers even now. (May 16, 2026)

VI. FRAUDULENT CONCEALMENT TOLLING STATUTE OF LIMITATIONS

The statute of limitations is tolled under **Indiana Code § 34-11-5-1** due to the defendants' active and passive fraudulent concealment of Kratochvil's malpractice and conflict of interest.

Defendant

Acts of Concealment

Jillian Kratochvil

1. Failed to disclose her pending judicial application (conflict of interest).2. Filed a biased report to expedite case closure for career advancement.3. Strategically "withdrew" instead of recusing to avoid testimony.4. Falsely asserted judicial immunity to intimidate and deter litigation.

SKO, PLLC

1. Failed to supervise Kratochvil and ensure disclosure of conflicts.2. Benefitted from the concealment by maintaining its business relationship.3. Participated in retaliatory actions (real estate deal) after being served.

Defendant

Judge Donald Vowels

Acts of Concealment

1. Failed to address the obvious conflict of interest. 2. Allowed Kratochvil's report to stand unchallenged, shielding her from scrutiny. 3. Aided in the concealment by accepting the "withdrawal" over a mandatory recusal. 4. Refused to recuse self despite conflict of interest that GAL was his new boss. 5. Was this from fear of being viewed as insubordinate?

VII. FEDERAL § 1983 CIVIL RIGHTS CLAIM

A colorable claim exists under 42 U.S.C. § 1983 for the violation of Leonardo's substantive due process right to life and bodily integrity under the Fourteenth Amendment.

- **State Action:** Kratochvil was a state-appointed actor (GAL) performing a state function, acting under color of state law.
- **"Special Relationship" Exception:** While the state generally has no duty to protect citizens from private violence (*DeShaney v. Winnebago County*), an exception applies here. Leonardo was effectively in the state's custody through the guardianship proceedings. The court, via its agent Kratochvil, exercised control over his placement and affirmatively created the danger that led to his death by recommending he remain with his father.
- **Supplemental Jurisdiction (28 U.S.C. § 1367):** A federal court can exercise supplemental jurisdiction over the state-law claims (wrongful death, malpractice) as they arise from the same common nucleus of operative fact as the § 1983 claim.

VIII. STRATEGIC LEGAL ARGUMENTS AND RECOMMENDATIONS

A. Recommended Plaintiff Structure: * **File as the Estate of Leonardo Eslinger, with Kristi Held as Personal Representative.** This is the sole proper plaintiff for the wrongful death claim and is the most defensible position on standing. * **Do not include Sherri Eslinger or Kristi Held as individual plaintiffs.** They lack standing, and their inclusion would invite an immediate and likely successful motion to dismiss. * **For Serena and Jonah:** The trauma and harm they suffered are distinct. Consider separate actions brought on their behalf by a court-appointed next friend or as part of the guardianship to avoid complicating the wrongful death claim. (NEED TO KNOW HOW TO AMEND MOTIONS BECAUSE SHERRI AND KRISTI ARE ON AS INDIVIDUALS AND KRISTI IS ON AS PR OF ESTATE AND NEXT OF FRIEND FOR THE MINOR CHILDREN)

B. Recommended Consolidation Strategy: * **Keep all claims in a single, unified filing initially.** This is the most efficient approach and is required under Indiana law to avoid collateral estoppel against unnamed tortfeasors. *Bornstein v. Watson's of Indianapolis, Inc.*, 771 N.E.2d 663 (Ind. Ct. App. 2002). * The primary cause of action is the Estate's wrongful death claim. The federal § 1983 claims are properly joined. * **Trial Strategy:** If the case proceeds to trial, file a motion to **bifurcate** liability from damages to prevent prejudice. * **Risk:** If the federal claims are dismissed early, the federal court may decline supplemental jurisdiction and remand the state claims. *Andrews v. Bailey*, 2023 U.S. Dist. LEXIS 54593 (S.D. Ala. 2023). This is an acceptable risk, as the state claims would remain preserved.

C. Recommended Court Filing Strategy: * **File in the U.S. District Court for the Southern District of Indiana.** * Lead with the **§ 1983 Civil Rights violation** to establish federal question jurisdiction. * Include all state-law claims (wrongful death, gross negligence, fraud) under supplemental jurisdiction. This strategy maximizes pressure on the defendants

and avails the case of federal discovery rules. (QUESTION- IS THERE ANOTHER FEDERAL COURT THAT MOTIONS CAN BE FILED IN, KEEP OUT OF VANDERBURGH COUNTY DUE TO CONFLICT OF INTEREST OF SITTING JUDGE OF VANDERBURGH SUPERIOR COURT WHO IS ALSO CHIEF JUSTICE FROM PREJUDICE FROM JURY, POWER and CONNECTIONS AS CHIEF JUSTICE IN VAND COURT)

D. Proactive Standing Defense: * Immediately front-run any defense challenges to standing.

* The complaint should clearly state that Kristi Held is the court-appointed Personal Representative (attach the order as an exhibit). * Explicitly cite *Latoya Alexander* for the proposition that the personal representative is the *only* proper plaintiff. * Proactively address the preclusion of the parents due to their suspended rights and culpability.

E. Strategy to Defeat GAL Immunity: * The defense will argue Kratochvil has quasi-judicial immunity. This must be aggressively rebutted. * **Argument:** Immunity does not apply to a GAL who acts as an advocate, commits fraud, or operates under a clear conflict of interest. * **Case Law:** In *Gibson v. Theut*, 438 P.3d 666 (Ariz. App. 2019), the court held a GAL acting as an advocate in adversarial proceedings is **not entitled to judicial immunity**. * **Case Law:** In *Forman v. S.C. Dep't of Labor*, 796 S.E.2d 138 (S.C. App. 2016), the court held that quasi-judicial immunity **does not shield a GAL from professional disciplinary proceedings** for fraud or failure to perform duties. Kratochvil's actions were outside the scope of her legitimate duties.

IX. CASE NARRATIVE

This case is not about a simple mistake or a judgment call. It is about a court-appointed Guardian ad Litem who, while actively seeking a judgeship, betrayed her sacred duty to a child. Jillian Kratochvil faced a clear conflict of interest—her duty to protect Leonardo

Eslinger versus her ambition to ascend to the bench. She chose ambition. She allegedly fabricated a biased, inaccurate report to quickly dispose of the case, paving the way for her judicial appointment. When her conflict became undeniable, she did not recuse. Instead, she abused her new position of power to have her fraudulent report permanently sealed from challenge, convinced the presiding judge to accept her “withdrawal,” and walked away from her responsibility, leaving Leonardo in the hands of the very person from whom he needed protection. Thirty-six days after she was sworn in as a judge, Leonardo was dead. This lawsuit seeks to hold her and her firm accountable for this gross dereliction of duty and abuse of power that cost a child his life.

X. CONCLUSION

The case presents a strong, albeit complex, pathway to victory. The evidence of GAL misconduct, coupled with clear due process violations and a sound legal strategy on standing, provides a firm foundation for the complaint. The key challenges will be defeating the inevitable motion to dismiss on immunity and standing grounds. By proactively addressing these issues with the legal authority outlined above, we can position the Estate of Leonardo Eslinger for a successful outcome and achieve justice for Leonardo.